

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #1	CCRB Case #: 202008472	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/20/2020 8:00 PM	Location of Incident: 183rd Street and Crotona Avenue	Precinct: 48	18 Mo. SOL 5/20/2022	EO SOL 5/20/2022	
Date/Time CV Reported Thu, 12/17/2020 10:30 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/17/2020 10:30 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. LT Anderson Ortiz	00000	949424	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Avdo Javorovac	17274	961836	048 PCT
2. POM Steven Perez	23485	962681	048 PCT
3. POM David Ramirez	25053	962711	048 PCT
4. POM Haroldy Cabreja	01747	953715	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Anderson Ortiz	Abuse: Lieutenant Anderson Ortiz stopped § 87(2)(b)	
B.LT Anderson Ortiz	Abuse: Lieutenant Anderson Ortiz frisked § 87(2)(b)	
C. An officer	Abuse: An officer frisked § 87(2)(b)	
D.LT Anderson Ortiz	Abuse: Lieutenant Anderson Ortiz searched § 87(2)(b)	
E.LT Anderson Ortiz	Discourtesy: Lieutenant Anderson Ortiz spoke discourteously to § 87(2)(b)	
F.LT Anderson Ortiz	Abuse: Lieutenant Anderson Ortiz failed to provide § 87(2)(b) with a business card.	
§ 87(4-b) § 87(2)(g)		
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Case Summary

On December 17, 2020, § 87(2)(b) filed this complaint over the phone with the CCRB on behalf of his 15-year-old son, § 87(2)(b).

On November 20, 2020, at approximately 8:00 P.M, in the vicinity of 183rd Street and Crotona Avenue in Bronx, Lt. Anderson Ortiz of the 48th Precinct stopped § 87(2)(b) (**Allegation A, Abuse of Authority: § 87(2)(g)**). Lt. Ortiz and an unidentified officer frisked § 87(2)(b) (**Allegation B, Abuse of Authority: § 87(2)(g)** and **Allegation C, Abuse of Authority: § 87(2)(g)**). Lt. Ortiz then entered § 87(2)(b)'s pockets (**Allegation D, Abuse of Authority: § 87(2)(g)**). Lt. Ortiz told § 87(2)(b) that the streets were safer with his brothers in jail and that he hoped they got life in prison (**Allegation E, Discourtesy: § 87(2)(g)**). Lt. Ortiz failed to provide § 87(2)(b) with a business card (**Allegation F, Abuse of Authority: § 87(2)(g)**). § 87(4-b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was not arrested or issued any summonses.

The investigation obtained BWC footage of the incident from Lt. Ortiz, as well as PO Steven Perez and PO Avdo Javorovac, also assigned to the 48th Precinct (**01-03 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Anderson Ortiz stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Anderson Ortiz frisked § 87(2)(b)

Allegation (C) Abuse of Authority: An officer frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Lieutenant Anderson Ortiz searched § 87(2)(b)

Allegation (E) Discourtesy: Lieutenant Anderson Ortiz spoke discourteously to § 87(2)(b)

Allegation (F) Abuse of Authority: Lieutenant Anderson Ortiz failed to provide § 87(2)(b) with a business card.

§ 87(4-b) § 87(2)(g)

It is undisputed that on November 20, 2020, at approximately 8 P.M., Lt. Ortiz stopped § 87(2)(b) outside a corner deli at 183rd Street and Crotona Avenue in the Bronx. Other officers present during the stop included PO Javorovac and PO Perez, as well as PO Haroldy Cabreja, also assigned to the 48th Precinct.

§ 87(2)(b) testified that, prior to being stopped, he was standing outside the deli with five friends, whose full names and contact information he did not know (**04-05 Board Review**). He and his friends were not doing anything other than standing and talking. After standing outside the deli for approximately 10 to 20 minutes, § 87(2)(b) observed an unmarked black Ford pull up to the side of road. Three officers exited the vehicle at the same time. § 87(2)(b) recognized these officers from the neighborhood but had never previously interacted with any of them. He described one officer, identified by the investigation as Lt. Ortiz, as a 5'5" or 5'6" tall white male in his 30s with a muscular build, black hair, and moustache who was wearing a blue uniform. He described Police Officer 1 as a 6' tall heavyset white male wearing a hat and a blue uniform. He was unable to provide a detailed description of Police Officer 2, noting only that he was a white male wearing a blue uniform. Lt. Ortiz asked § 87(2)(b) if the store sold Sprite. Then, without saying anything else,

Lt. Ortiz guided § 87(2)(b) to the side of store and held him against the outer wall of the building, while Police Officers 1 and 2 stood on either side of him. § 87(2)(b) was wearing a black Jordan sweatsuit with two front pants pockets, as well as a zipped up fitted white and black Nike windbreaker with two side pockets. The only thing in his pockets was his iPhone SE; he did not recall which pocket this was in. None of his pockets had any bulges. Without asking for permission, Lt. Ortiz patted § 87(2)(b) down on his chest with an open palm and then patted down his legs and arms. Lt. Ortiz also entered both of § 87(2)(b)'s coat pockets without removing anything. Police Officer 1 briefly patted down § 87(2)(b)'s lower legs. Either Lt. Ortiz or Police Officer 1 also patted him down on his buttocks. § 87(2)(b) told the officers to stop frisking and searching him because he had not done anything wrong and had nothing illegal with him. When he asked the officers the reason for the frisk and search, Lt. Ortiz told him that it looked like he had a gun on him. He did not explain where he believed he saw this alleged gun. The pat down lasted for approximately one minute. After patting him down, Lt. Ortiz asked § 87(2)(b) questions about his two older brothers who were incarcerated at the time, including what they had been arrested for and how long their sentences were. § 87(2)(b) answered these questions truthfully. Lt. Ortiz then stated that the streets were safer with § 87(2)(b)'s brothers in jail and that he hoped they got life in prison. He also told § 87(2)(b) to go to his court dates and then told him that he could leave. § 87(2)(b) did not have any upcoming court dates. No officer gave § 87(2)(b) a business card during the incident.

§ 87(2)(b) stated that § 87(2)(b) was arrested in § 87(2)(b) (06 Board Review).

At 00:00 in PO Javorovac's BWC, PO Javorovac is standing across from § 87(2)(b) who has his back to the outer wall of the deli (03 Board Review). § 87(2)(b) is wearing a black and white Nike puffer jacket. Lt. Ortiz is standing to § 87(2)(b)'s right and PO Perez is standing to his left. At 00:25, Lt. Ortiz pats § 87(2)(b) on the back, and states, "Good for you, man. Stay out of trouble, all right? Make sure you go to all your court dates and everything. Have a good night, man." None of the officers are wearing hats. At no point in the footage does any officer frisk or search § 87(2)(b) tell him that they hope his brothers get life in prison, or offer him a business card.

Lt. Ortiz's BWC opens with him standing by the wall of the deli with the other officers. At 00:42 in Lt. Ortiz's BWC, Lt. Ortiz is standing to the right of § 87(2)(b) who has his back to the outer wall of the deli, while PO Cabreja is talking on one cell phone and looking at a second cell phone (01 Board Review). The audio on the BWC has not yet activated so any conversation PO Cabreja is having over the phone is not audible. PO Cabreja then hands the second cell phone to PO Javorovac, who looks at it and hands it back to him. None of the officers are wearing hats. At no point in the footage does any officer frisk or search § 87(2)(b) tell him that they hope his brothers get life in prison, or offer him a business card.

Lt. Ortiz testified that he and his partners were patrolling the area in an unmarked vehicle when they observed a group of teenagers entering and leaving the deli, one of whom he believed might be § 87(2)(b) (07 Board Review). The group was not doing anything other than entering and leaving the store. At the time, there was an open I-card for § 87(2)(b) related to an armed robbery of a § 87(2)(b)-year-old man. Lt. Ortiz was very familiar with § 87(2)(b) and his father, as well as his brothers, who were incarcerated for shootings and other violent crimes in the 48th Precinct. As Special Operations Lieutenant, Lt. Ortiz was familiar with individuals that have open warrants or I-cards within the precinct. The other officers in the vehicle also stated that they believed they saw § 87(2)(b). The officers then parked the vehicle at the corner of 183rd Street and Crotona Avenue and continued to observe the group in order to confirm that the individual was § 87(2)(b). When they were fairly certain that the individual was § 87(2)(b), Lt. Ortiz and the other officers exited the vehicle and stopped him. Lt. Ortiz did not recall how officers stopped § 87(2)(b). He did not

recall who decided to detain § 87(2)(b) but noted that he was the supervisor in charge. The decision to stop § 87(2)(b) was based on the open I-card, which provided probable cause. Lt. Ortiz did not recall noticing anything that indicated § 87(2)(b) had a weapon at the time of the stop and did not recall seeing any bulges on his person. Once § 87(2)(b) was stopped, Lt. Ortiz directed PO Cabreja to call the investigator with the 48th Precinct detective squad who had created the I-card; he did not recall who this investigator was. While PO Cabreja was on the phone, Lt. Ortiz and the other officers waited with § 87(2)(b). After getting off the phone, PO Cabreja informed Lt. Ortiz that the detective squad officer stated that the officers should not arrest § 87(2)(b). For this reason, Lt. Ortiz allowed § 87(2)(b) to leave. Lt. Ortiz did not recall patting § 87(2)(b) down, nor did he recall any other officer doing so. He did not recall entering § 87(2)(b)'s pockets, nor did he recall any other officer doing so. However, he stated that it would not have been inappropriate for officers to frisk § 87(2)(b) based on the fact that he had been detained for an I-card related to a violent crime. Lt. Ortiz did not recall having a conversation with § 87(2)(b) while he was stopped, nor did he recall any other officer doing so. He did not recall telling § 87(2)(b) that the streets were safer with his brothers in jail and that he hoped they got life in prison, nor did he recall any other officers doing so. Lt. Ortiz did not recall providing a business card to § 87(2)(b). He testified that while officers were required to provide business cards for encounters based on reasonable suspicion, they were not required to provide them for probable cause stops. Lt. Ortiz testified that he did not immediately remember to activate his BWC upon stopping § 87(2)(b) because he was worried about officer tactics and safety. His safety concerns stemmed from § 87(2)(b)'s open I-card for a violent armed robbery. Shortly after stopping § 87(2)(b) he remembered to activate his BWC and instructed the other officers to do so.

Complaint Report #§ 87(2)(b) regards a robbery committed on § 87(2)(b) **(08 Board Review)**. The narrative states that the victim was entering an elevator in a residential building when four unknown black males hit him with closed fists on his legs and arms. One of the perpetrators hit the victim on his right arm with a stick, causing bruising. The perpetrators then told the victim to hand over his wallet. There were cameras on scene. § 87(2)(b) was arrested in regards to this complaint on § 87(2)(b).

I-Card #§ 87(2)(b) submitted by PO Sandra Martinez of the 48th Precinct Detective Squad lists § 87(2)(b) as perpetrator with probable cause to arrest on charges of robbery in the second degree **(09 Board Review)**. The I-card was created on November 5, 2020 and was closed on December 15, 2020.

According to his MOS photo, PO Javorovac is a 5'10" tall, 210-pound, § 87(2)(b)-old white male with dark blonde hair and brown eyes **(11 Board Review)**. PO Perez's MOS photo shows that he is a 5'8" tall, 180-pound, § 87(2)(b)-old Hispanic male with a medium skin tone, brown hair, and brown eyes **(12 Board Review)**. According to his MOS photo, PO Cabreja is a § 87(2)(b)-old Hispanic male, 6'1" tall, 215 pounds, with black hair, brown eyes, a full beard, and a moustache **(13 Board Review)**.

According to *People v. De Bour* 40 N.Y.2d 210, officers are permitted to stop and detain a civilian when they have "a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor," **(24 Board Review)**. During such a stop, a frisk and search is permitted "if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed."

According to NYPD Patrol Guide Procedure 212-11, a Terry Stop or Level 3 encounter is any encounter between a civilian and an officer in which "a reasonable person would not feel free to disregard the officer and walk away," **(15 Board Review)**. A stop may be conducted only when an officer has "an individualized reasonable suspicion that the person stopped has committed, is

committing, or is about to commit a felony or Penal Law misdemeanor. [...] Reasonable suspicion exists when the information known to the member of service would make an ordinarily prudent and cautious police officer under the circumstances believe that a felony or Penal Law misdemeanor has been, is being or is about to be committed. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct.” During a Level 3 stop, officers are authorized to perform a frisk, or to run their hands outside an individual’s clothing and feel for a weapon if the officer “reasonably suspects that the person is armed and dangerous. This includes situations in which the officer reasonably suspects that the person has committed, is committing, or is about to commit a violent crime or when the officer observes something on the person that she/he reasonably suspects is a weapon. [...] A search occurs when the officer places her/his hands inside a pocket or other interior portions of a person’s clothing or personal property to remove an object that the member felt during a frisk and reasonably suspects is a weapon or dangerous instrument.” In such an instance, the officer may only search the “interior portions of the stopped person’s clothing” in the area where a frisk revealed something they reasonably suspect may be a weapon.

According to NYPD Administrative Code §14-174, officers are required to offer a business card upon the conclusion of law enforcement activities that do not result in arrests or summonses, including “pedestrian stops where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime where a reasonable person would not feel free to end the encounter at will,” **(16 Board Review)**.

Patrol Guide Procedure 212-123 requires officers to activate their BWC when interacting with an individual suspected of criminal activity **(17 Board Review)**. Officers are to begin their recording prior to their arrival at an incident location. If there are exigent circumstances, officers are to activate their BWC “as soon as it is feasible and safe to do so after taking necessary police action to preserve human health and safety. At no time should proper tactics be compromised to begin a recording.”

§ 87(2)(g)

Lt. Ortiz testified that he did not recall if he conducted a frisk. BWC footage does not depict any officers frisking § 87(2)(b) but does not show the incident in its entirety. § 87(2)(g)

Both PO Cabreja and PO Javorovac are partial matches for § 87(2)(b)'s description of Police Officer 1. § 87(2)(g)

Since Lt. Ortiz did not recall if he searched § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Lt. Ortiz stated he did not recall offering § 87(2)(b) a business card. Although he stated that stops based on probable cause do not require officers to offer business cards, NYPD Administrative Code §14-174 state that all Level 3 encounters require officers to do so unless the individual is arrested or issued a summons. As noted above, § 87(2)(b) was not arrested or issued any summonses. § 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- [illegible]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On February 18, 2022, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt (**21 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 1

Investigator:	<u>Rachel Adler</u>	<u>Investigator Rachel Adler</u>	<u>4/1/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u></u>	<u>4.1.22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date